

dinary forms of law: reserving such injuries or encroachments as may occur between the crown and the subject, to be distinctly considered hereafter; as the remedy in such cases is generally of a peculiar and eccentric nature.

Now, as all wrong may be considered as merely a privation of right, the one natural remedy for every species of wrong is the being put in possession of that right, whereof the party injured is deprived. This may either be effected by a specific delivery or restoration of the subject-matter in dispute to the legal owner; as when lands or personal chattels are unjustly withheld or invaded: or, where that is not a possible, or at least not an adequate remedy, by making the sufferer a pecuniary satisfaction in damages; as in case of assault, breach of contract, &c: to which damages the party injured has acquired an incomplete or inchoate right, the instant he receives the injury^a; though such right be not fully ascertained till they are assessed by the intervention of the law. The instruments whereby this remedy is obtained (which are sometimes considered in the light of the remedy itself) are a diversity of suits and actions, which are defined by the mirror^b to be “the lawful demand of one’s right:” or as Bracton and Fleta express it, in the words of Justinian^c, *jus prosequendi in judicio quod alicui debetur*.

THE Romans introduced, pretty early, set forms for actions and suits in their law, after the example of the Greeks; and made it a rule that each injury should be redressed by its proper remedy only. “*Actiones*, say the pandects, *compositae sunt, quibus inter se homines disceptarent, quas actiones ne populus prout vellet institueret, certas solennesque esse voluerunt*^d.” The forms of these actions were originally preserved in the books of the pontifical college, as choice and inestimable secrets, till one Cneius Flavius, the secretary of Appius Claudius, stole a copy and published them to the people^e. The concealment was ridiculous:

^a See book II. ch. 29.

^b c. 2. §. 1.

^c *Inst.* 4. 6. *pr.*

^d *Ff.* 1. 2. 2. §. 6.

^e *Cic. pro Muraena.* §. 11. *de orat.* l. 1.

c. 41.

but